

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA

In the matter of an Appeal in terms of Section
331 (3) of the Code of Criminal Procedure
Act No.15 of 1979.

Democratic Socialist Republic of Sri Lanka.

Complainant

Vs.

Uchenna Chigbo Ezeokonkwo

Accused

Court of Appeal Case No:

CA/HCC/0255/23

High Court of Colombo Case No:

HC/641/2018

AND NOW BETWEEN

Uchenna Chigbo Ezeokonkwo

Accused-Appellant

Vs

Hon. Attorney General,
The Attorney General's Department,
Colombo 12.

Complainant-Respondent

Before : **P Kumararatnam, J.**
Pradeep Hettiarachchi, J.

Counsel : Dilan Ratnayake P.C. with Vivendra Ratnayake, Ashani
Kankanamge and Nipun Nawarathna instructed by
Priyanga Balakrishna for the Accused-Appellant.

: Tharaka Kodagoda SC for the Respondent.

Argued on : 17.03.2026

Decided on : 25.06.2026

Pradeep Hettiarachchi, J

Judgement

1. The Appellant was indicted before the High Court of Colombo on four counts, namely,
 - a. Possession of 245.19 grams of Cocaine, an offence punishable under Section 54A(d) of the Poisons, Opium and Dangerous Drugs (Amendment) Ordinance No. 13 of 1984;
 - b. Trafficking of 245.19 grams of Cocaine, an offence punishable under Section 54A(c) of the Poisons, Opium and Dangerous Drugs (Amendment) Ordinance No. 13 of 1984;
 - c. Possession of 836.69 grams of Cocaine, an offence punishable under Section 54A(d) of the Poisons, Opium and Dangerous Drugs (Amendment) Ordinance No. 13 of 1984;
 - d. Trafficking of 836.69 grams of Cocaine, an offence punishable under Section 54A(c) of the Poisons, Opium and Dangerous Drugs (Amendment) Ordinance No. 13 of 1984;

2. At the conclusion of the trial, the Learned High Court Judge convicted the Appellant on the 1st and 2nd counts and acquitted him on the 3rd and 4th counts. Accordingly, the Appellant was sentenced to death in respect of the 1st and 2nd counts.
3. In the present appeal, the Appellant has advanced seven grounds of appeal challenging the conviction and sentence imposed by the Learned High Court Judge of Colombo.
4. Facts of this matter can be summarized as follows;
5. The Appellant is a Nigerian national married to a Sri Lankan woman. The raid in question was conducted by officers attached to the Police Narcotics Bureau. According to PW1 Subhoda, the operation was organised upon information received from one of his private informants, who had provided him with the Appellant's telephone number.
6. PW1 thereafter contacted the Appellant using the said number and posed as a prospective purchaser of drugs. According to the prosecution, the Appellant was arrested at the KFC car park in Rajagiriya when he handed over to PW1 a parcel containing cocaine. Notably, neither the Appellant's arrest nor the handing over of the parcel to PW1 was challenged by the defence at trial or in the present appeal.
7. The Appellant's position was that a foreign national named "Izu" had handed over the parcel to him with instructions to deliver it to a person who would arrive at the car park pursuant to a telephone call received on his mobile phone. According to the Appellant, he had been travelling in a hired PickMe vehicle when the said Izu entered the same vehicle and handed over the parcel, which was later found to contain cocaine.
8. The Appellant contended that he was unaware that the parcel contained cocaine, as he had no opportunity to examine its contents. He further stated that, during the journey, an argument arose between him and the said Izu, prompting Izu to alight from the vehicle while leaving the parcel in the Appellant's possession.
9. The grounds of appeal advanced by the Appellant are as follows:
 - a. No conscious possession of the alleged drugs;

- b. Failure to evaluate that the requisite mental element was not present;
 - c. Prosecution evidence relating to the 2nd raid was unreliable and contradictory;
 - d. PW1, who was the main witness in a Trial at Bar case HC (TAB) No. 3887/2022, dated 06.04.2023, was held to be unreliable and untrustworthy;
 - e. Probability and the integrity of the raid were in question;
 - f. No fair investigation;
 - g. The sentence imposed by the Learned High Court Judge is excessive.
10. The first two grounds of appeal are interrelated and may conveniently be considered together. The Appellant contended that it was the said “Izu” who handed over the bag to him with instructions to deliver it to another person, and, therefore, he had no knowledge of the contents of the parcel. Accordingly, it was argued that the Appellant did not have conscious possession of the drugs contained therein.
11. It was further submitted that the evidence of PW18, the driver of the PickMe vehicle, corroborated the defence version that the bag containing cocaine had been handed over to the Appellant by another person. Additionally, the Appellant argued that the evidence of PW1 establishes that, upon his arrest, he repeatedly requested permission to telephone Izu, the person who allegedly handed over the parcel to him, but that PW1 refused to permit such communication.
12. Premised on the foregoing, the Appellant contended that the Learned Trial Judge had failed to sufficiently evaluate the evidence, particularly with regard to the absence of the requisite mental element necessary to convict him on counts 1 and 2. The Appellant placed considerable reliance on the decisions in *Van Der Hultes vs. Attorney General [1989] 1 Sri L.R 204* and *Sumanawathi Perera vs. Attorney General (1998) 2 Sri L.R. 20*, and submitted that mere possession, without proof of conscious possession or knowledge of the nature of the substance, is insufficient in law to sustain a conviction.
13. The respondent, on the other hand, contended that there existed ample evidence establishing that the Appellant had knowledge of the nature of the substance in question and, therefore, that conscious possession had been proved beyond reasonable doubt.
14. The evidence reveals that PW1 continuously communicated with the Appellant over the telephone, pursuant to the information received from his informant, until the

Appellant arrived at the car park where he was eventually arrested. The telephone records marked in evidence confirmed the incoming and outgoing calls made to and from the Appellant's mobile phone. Significantly, the mobile phone used by the Appellant contained dual SIM cards, and the numbers used by him ended in6859 and1405 respectively.

15. More importantly, according to PW1, when the Appellant entered PW1's vehicle, he opened the parcel and showed the substance contained therein to PW1 while discussing the price. Such conduct, if accepted, is strongly indicative of the Appellant's knowledge of the contents of the parcel and materially supports the prosecution's position that the Appellant was in conscious possession of the cocaine.
16. In this regard, the following principles set out by Lord Wilberforce in ***Warner vs. Metropolitan Police Commissioner (1968) 52 Criminal Appeal Report 373*** are of much relevance.

"The question, to which an answer is required, and in the end a jury must answer it, is whether in the circumstances the accused should be held to have possession of the substance, rather than mere control. In order to decide between these two, the jury should, in my opinion, be invited to consider all the circumstances - to use again the words of Pollock & Wright, Possession in the Common Law, p. 119 - the 'modes or events' by which the custody commences and the legal incident in which it is held. By these I mean, relating them to typical situations, that they must consider the manner and circumstances in which the substance, or something which contains it, had been received, what knowledge or means of knowledge or guilty knowledge as to the presence of the substance, or as to the nature of what has been received, the accused had at the time of receipt or thereafter up to the moment when he is found with it; his legal relation to the substance or package (including his right of access to it). On such matters as these (not exhaustively stated) they must make the decision whether, in addition to physical control, he has, or ought to have imputed to him the intention to possess, or knowledge that he does possess, what is in fact a prohibited substance. If he has this intention or knowledge, it is not additionally necessary that he should know the nature of the substances."

17. These observations have been applied in ***Re vs. Edmond Levis, 87 Criminal Appeal Report 270*** as well.

18. In this regard, the following passage by R.S. Wright [Pollock and Wright] in their admirable book “*An Essay on Possession in Common Law*” [1888 Part III Chapter I page 119] would be of much relevance.

“The ‘modes or events’ by which the custody commences and the legal incident in which it is held. By these I mean, relating them to typical situations, that they [the jury] must consider the manner and circumstances in which the substance or something which contains it, has been received, what knowledge or means of knowledge or guilty knowledge as to the presence of the substance, or as to the nature of what has been received, the accused had at the time of receipt or thereafter up to the moment when he is found with it; his legal relation to the substance or package (including his right of access to it) On such matters as these (not exhaustively stated) they [the jury] must make the decision whether, in addition to physical control, he has, or ought to have imputed to him the intention to possess or knowledge that he does possess what is in fact a prohibited substance. If he has this intention or knowledge, it is not additionally necessary that he should know the nature of the substance.”

19. In the present case, it is significant to emphasize that the evidence of PW1, to the effect that the Appellant opened the parcel and showed the substance while they were inside the van, was not challenged in cross-examination by the defence.

20. It is trite law that where material portions of a witness’s testimony are not challenged in cross-examination and remain uncontroverted, such evidence may be treated as having been accepted and proved, unless there are inherent improbabilities or other evidence to the contrary.

21. In ***Motilal vs. State of Madhya Pradesh 1990 CRI LJ No.: 125***, held absence of cross-examination of a prosecution witness of certain facts leads to the inference of admission of that fact.

22. In *Edrick de Silva vs. Chandradasa de Silva* 70 N.L.R. 169 at 170, Justice H.N.G. Fernando observed;

"When there is ample opportunity to contradict the evidence of a witness but is not impugned or assailed in cross-examination, that is a special fact and feature to the case. It is a matter falling within the definition of the word "prove" in Section 3 of the Evidence Ordinance, and as Trial Judge of Court must necessarily take that fact into consideration in adjudicating the issue before it".

23. In the case of *Himachal Pradesh vs. Thakur Oass* (1983) 2 Cri. L.J. 1694 at 1701, V. D. Misra CJ held: *"Whenever a statement of fact made by a witness is not challenged in cross-examination, it has to be concluded that the fact in question is not disputed"*

24. The Indian judgment of *Sarvan Singh vs. State of Punjab* (2002 AIR SC (iii) 3652), pages 3655 and 3656, was cited in the case of *Ratnayake Mudiyansele Premachandra vs. The Hon. Attorney General* C.A Case No. 79/2011, decided on 04.04.2017 as follows:

"It is a rule of essential justice that whenever the opponent has declined to avail himself of the opportunity to put his case in cross-examination, it must follow that the evidence tendered on that issue ought to be accepted."

25. In the case of *Ajith Samarakoon vs. Attorney-General (Kobeigane Murder Case)* [2004] (2) Sri LR 209 at 230, Ninian Jayasuriya, J. held that, *"Evidence not challenged or impugned in cross-examination can be considered as admitted and is provable against the accused."*

26. Thus, in the present case, the testimony of PW1 regarding the Appellant's act of showing the cocaine while inside the van remained unchallenged and may, therefore, be accepted as proved. Had the Appellant been unaware of the nature of the substance, it is unlikely that he would have shown it to PW1 and discussed its price.

27. Further, it is evident that "Izu" allegedly handed over the parcel to the Appellant only when he was alighting from the vehicle. The evidence of PW18 confirms that there was an altercation between the Appellant and Izu while they were travelling in the cab.

Moreover, there is no evidence to suggest that Izu made any telephone calls while inside the vehicle. In that backdrop, it is difficult, if not impossible, to accept the inference that the Appellant was unaware of the contents of the parcel handed over to him by Izu.

28. Accordingly, the prosecution has established conscious possession of cocaine beyond a reasonable doubt. In these circumstances, the first two grounds of appeal advanced by the Appellant are devoid of merit and are accordingly dismissed.
29. The Appellant further contended that, since the Learned High Court Judge had found the prosecution evidence relating to the second recovery of cocaine from the premises where the Appellant resided to be contradictory and unreliable, the conviction on counts 1 and 2, which were based on the testimony of the same witnesses, cannot be sustained.
30. It is, however, to be noted that the Learned Trial Judge acquitted the Appellant on counts 3 and 4 not on the basis that the evidence of PW1 was disbelieved or found to be untrustworthy, but on the ground that, at the time of the alleged recovery, the Appellant was not present at the premises where the cocaine was discovered and that the said contraband was not in his exclusive possession or control.
31. In these circumstances, the acquittal of the Appellant on counts 3 and 4 does not, in my view, in any way affect the conviction entered on counts 1 and 2, nor does it undermine the credibility or reliability of the evidence of PW1.
32. It was further argued that PW1, the principal witness for the prosecution, had previously been held to be an unreliable witness by three Judges of the Trial-at-Bar and that, therefore, it would be unsafe to sustain the present conviction on his evidence.
33. It must, however, be stated that a witness may be regarded as unreliable or untrustworthy in a particular trial owing to the existence of contradictions, inconsistencies, or infirmities in the evidence given in that specific case.
34. However, that does not mean that such a witness must invariably be regarded as unreliable in every case in which he testifies. The credibility of a witness must always

be assessed in the context of the particular facts and circumstances of the case before the Court.

35. Conversely, if a witness who had previously been considered reliable in another case were to give evidence riddled with contradictions and infirmities in a subsequent case, the Court would not be justified in disregarding such infirmities merely because the witness had earlier been accepted as credible. Therefore, the reliability or otherwise of a witness cannot be determined in the abstract, but must depend upon the quality and consistency of the evidence adduced in the particular proceedings under consideration.
36. Accordingly, the contention of the defence that the evidence of PW1 must be treated as unreliable solely in light of the observations made in the Trial-at-Bar proceedings is devoid of merit.
37. Moreover, the Appellant contended that the prosecution's failure to produce "show money" rendered the probability of the raid doubtful. However, the evidence reveals that the raid was conducted pursuant to information received by PW1 from one of his private informants. PW1 had posed as a prospective purchaser and continuously communicated with the Appellant through mobile telephone number 0750281405.
38. Therefore, the absence of "show money" in the course of the raid does not, in my view, render the prosecution's version improbable, as the use of show money is not an indispensable or mandatory requirement in every raid of this nature. More importantly, the evidence of PW1 regarding the sequence of events that culminated in the raid does not indicate that the operation necessitated the use of show money.
39. The evidence further establishes that, on the date of the raid, PW1 received a call from telephone number 0758436859. Following the arrest of the Appellant, the police recovered three mobile phones from his possession. One of the said mobile phones contained dual SIM cards bearing the numbers 0750281405 and 0758436859, respectively.

40. The telephone details produced in evidence materially corroborate the testimony of PW1 regarding his communications with the Appellant prior to the arrest and lend substantial support to the prosecution's version of the raid.
41. The Appellant further questioned the propriety of reporting facts to the Magistrate's Court of Mahara, which was situated outside the territorial jurisdiction where the raid had been conducted, and thereby contended that the investigation lacked fairness.
42. According to the prosecution evidence, the facts were initially reported to the Magistrate's Court of Mahara, and the Appellant was also first produced before that Court. However, pursuant to the directions issued by the Learned Magistrate of Mahara, the Appellant was subsequently produced before the Magistrate's Court of Colombo. Thereafter, upon an application made to the Magistrate's Court of Colombo, the telephone details necessary for the investigation were obtained.
43. Moreover, PW1 satisfactorily explained to the Court that he initially reported facts to the Magistrate's Court of Mahara as the information first received by him indicated that the trafficking operation had been organised from within the Mahara Prison. Furthermore, the information received by PW1 had been contemporaneously recorded at page 168 of his pocket notebook, which was produced and marked in evidence as P2.
44. Therefore, the initial production of the Appellant before the Magistrate's Court of Mahara has not caused any prejudice to the Appellant, nor has it affected the legality of the raid or the subsequent investigation. No material was placed before this Court to establish that the Appellant's right to a fair trial was either infringed or denied by reason of the procedure adopted by the investigators. Accordingly, I find no merit in the aforesaid ground advanced by the Appellant.
45. It was further contended that, at the commencement of the trial, the Appellant was arraigned on only three counts despite the indictment containing four counts. It was therefore argued that the Appellant's plea of not guilty to all four counts was not properly recorded, and that such procedural irregularity had resulted in a denial of a fair trial.

46. However, it appears that the said irregularity was not a substantial defect, but rather a mere typographical error. More importantly, the Appellant was duly represented by Counsel throughout the proceedings. An examination of the manner in which cross-examination was conducted by the defence makes it manifest that the Appellant was not misled by the said error, as the defence proceeded on the clear basis that the Appellant had been indicted on four counts.
47. Accordingly, it is my considered view that no prejudice was caused to the Appellant by reason of the said error, and therefore the contention advanced in this regard cannot be sustained.
48. I shall now consider whether the Learned Trial Judge has adequately evaluated the defence evidence. The Appellant contended that the Learned High Court Judge erred both in law and in fact by failing to properly analyze and appreciate the defence case, particularly with regard to the alleged involvement of one “Izu”, whose participation, according to the Appellant, was corroborated even by certain prosecution witnesses, thereby giving rise to a reasonable doubt in the prosecution case.
49. The Appellant placed considerable reliance on the evidence of PW18, who was the driver of the vehicle in which the Appellant travelled to the KFC car park at Rajagiriya. According to the testimony of PW18, the Appellant initially entered his vehicle at the Keells Super Market on Cotta Road, Borella. Thereafter, the Appellant instructed PW18 to proceed to Chandrika Lane, stating that he intended to pick up a friend.
50. PW18 further stated that, upon reaching Chandrika Lane, another foreign national carrying a parcel entered the vehicle. Subsequently, PW18 drove towards McDonald’s at Nugegoda, during which journey the Appellant telephoned a person and requested him to come either to KFC or Pizza Hut at Battaramulla. According to PW18, at that stage, the other foreign national handed over the parcel to the Appellant and thereafter got down from the vehicle. Thereafter, acting on the instructions of the Appellant, PW18 proceeded to the KFC car park at Rajagiriya, where the alleged raid ultimately took place. However, this version is in stark contrast to the evidence given by the Appellant.

51. According to the Appellant, it was only after Izu handed over the parcel to him that Izu gave him a telephone in order to enable him to communicate with the person to whom the parcel was to be delivered, in accordance with Izu's instructions. The Appellant, in his testimony, stated that it was Izu who invited him to accompany him when the cab arrived and that, during the journey, Izu handed over the parcel to the Appellant with instructions to deliver it to a person at KFC Rajagiriya.
52. Accordingly, the Appellant contended that the Learned Trial Judge failed to properly appreciate this aspect of the defence case and did not adequately analyze and evaluate the testimony of PW18, which, according to the Appellant, casts a doubt on his complicity in the offences charged in the indictment.
53. As admitted by the Appellant in his testimony, Izu had been residing with him at Serpentine Road, Borella, and had jointly signed the lease agreement relating to the house in which they lived. Although the Appellant stated that both he and Izu were engaged in the textile business, it transpired during cross-examination that the Appellant possessed no meaningful knowledge regarding the business of exporting textiles.
54. Given the close association between the Appellant and Izu, particularly the fact that they were residing in the same house and had jointly executed the lease agreement, it is difficult to accept that the Appellant would have received the parcel from Izu without being aware of its contents.
55. Furthermore, one of the mobile phones recovered from the Appellant's possession contained dual SIM cards bearing the numbers 0750281405 and 0758436859. The telephone details relating to the said SIM cards marked as P46 confirm that it was the Appellant who communicated with PW1, with calls being both originated from and received to the same numbers. In these circumstances, the Appellant's version is inherently improbable and cannot be accepted as truthful.
56. The Learned Trial Judge has adequately analyzed and evaluated the evidence adduced on behalf of both the prosecution and the defence, and has set out sufficient reasons for

his findings. More importantly, the Learned Trial Judge has clearly explained why he was not inclined to accept the evidence adduced on behalf of the defence.

57. Hence, I find no reason to interfere with the findings of the Learned Trial Judge. Accordingly, the appeal is dismissed.

58. Nevertheless, it is apt to place on record the manner in which both Learned Counsel argued this appeal. They were well-prepared and precise in their submissions on the respective grounds of appeal. A special word of appreciation is due to the young Learned State Counsel, whose submissions were advanced meticulously and with commendable clarity, thereby facilitating the Court in its task of analyzing the issues raised.

Judge of the Court of Appeal

P. Kumararatnam, J.

I agree.

Judge of the Court of Appeal